

fer on the creditors a right which they did not originally possess (*c*); and indeed it has now been decided that if property be assigned to a trustee, and he takes possession of it, and communicates with certain of the creditors, who express their satisfaction, the trust is irrevocable (*d*).

4. **Trustee one of the creditors.**—If the trustee be himself a creditor, the debt forms a sufficient consideration on behalf of the creditor, and the deed is irrevocable (*e*); and in one case, where property was vested in a trustee for creditors, and the trustee was a *surety* for some of the debts, it was held that, though the trust was revocable as to the general creditors, yet the trustee himself was not bound to reconvey the estate until the suretyship was satisfied (*f*).

5. **Nature of the revocable trust.**—It does not clearly appear from the authorities what is the precise nature of a *revocable* trust of this kind. The instrument is sometimes called a *deed of agency*, and if so, the trust must be considered at an end at the death of the settlor, and the property, so far as it has not been applied, must be administered as part of the settlor's assets (*g*). The trust is not regarded as revocable only during the life of the settlor, so as to give a vested interest to the creditor after his death, for it has been held that the creditor *has no more [*518] equity to enforce the trust after a settlor's death than in his lifetime (*a*).

6. **Voluntary trust.**—Suppose there is no fraud, but the trust deed is a mere *voluntary* settlement not founded on

(*c*) Perhaps the old case of *Langton v. Tracy*, 2 Ch. Rep. 30, was decided on this principle, for it appears that Tracy, the trustee, declared to the creditors that he would pay the debts, and that some of the debts were actually paid under the deed. The creditors may also have been privies, though not parties, to the execution of the trust, for it is stated that the settlor executed the deed to avoid prosecution against him by his creditors.

(*d*) *Harland v. Binks*, 15 Q. B. 713; *Nicholson v. Tutin*, 2 K. & J. 18;

and see *Synnot v. Simpson*, 5 H. L. Cas. 121; *Cosser v. Radford*, 1 De G. J. & S. 585; [*Johns v. James*, 8 Ch. D. 744.]

(*e*) *Siggers v. Evans*, 5 Ell. & Bl. 367. [See *Johns v. James*, 8 Ch. D. 744.]

(*f*) *Wilding v. Richards*, 1 Coll. 655; and see *Gurney v. Oranmore*, 4 Ir. Ch. Rep. 470; S. C. 5 Ir. Ch. Rep. 436.

(*g*) *Wilding v. Richards*, 1 Coll. 655.

(*a*) *Garrard v. Lauderdale*, 3 Sim. 1; and see *Synnot v. Simpson*, 5 H. L. Cas. 139.